

Unequal Opportunity: Desegregation at the University of Virginia School of Law

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From its founding in 1819 until 1950, the University of Virginia remained a segregated, white-only institution. The judiciary played a crucial role in the desegregation of the University and other historically segregated schools. Indeed, legal precedent and the courts forced the University to admit its first black student, Gregory Swanson; however, the law is limited in its effect, as Swanson left the school due to the substantial social barriers that remained. Five years later, John Merchant entered the University and became the first black student to earn a Juris Doctor from the School of Law. This essay analyzes the legal history that led to Swanson's matriculation at the University of Virginia and compares the two case studies of Swanson and Merchant that illustrate the limitations of the judiciary and highlight the necessity of a "dual approach" through legal and social change to achieve equal opportunity in education.

INTRODUCTION

Qualified but "Colored." Gregory Swanson faced this problem when he applied to the University of Virginia School of Law (UVA Law) in 1950. Despite his scholarly brilliance and ample qualifications for an LL.M. degree, the Board of Visitors rejected his application solely on the basis of race, which quickly prompted a lawsuit from Swanson. In *Swanson v. the Rector and Visitors of the University of Virginia*, a federal district court sided with Swanson and ordered UVA Law to accept him as an LL.M. candidate. In the battle for equal educational opportunity, the law plays a major role in protecting the rights of minority populations; however, some scholars overemphasize the importance of legal progress since it is more concrete and easier to analyze.¹ Indeed, it is the neglected history of social change and individuals' perceptions that produce lasting improvements. This essay aims to accurately document legal history while properly including the social and individual components of the Civil Rights Movement that played a major role in altering the landscape of American higher education, building upon previous scholarship² that emphasizes the

¹ These scholars and their works include Mark V. Tushnet's *The NAACP's Strategy Against Segregated Education 1925–1950*; Carl W. Tobias' "Brown and the Desegregation of Virginia Law Schools"; Charles T. Clotfelter's *After Brown: The Rise and Retreat of School Desegregation*; and Richard Kluger's *Simple Justice: The History of Brown V. Board of Education and Black America's Struggle for Equality*.

² These scholars and their works include Tomiko Brown-Nagin's *Courage to Dissent: Atlanta and the Long History of the Civil Rights Movement*; Maurice Apprey and Shelli M. Poe's *The Key to the Door: Experiences*

bottom-up impact of desegregation. More specifically, this essay relies heavily on the case study of Gregory Swanson and John Merchant at the University of Virginia School of Law to expose the limitations of legal measures in achieving equal opportunity in higher education, and to highlight the importance of individual and social changes in bringing about a permanent pedagogical shift.

Swanson's victory was one of many victories civil rights lawyers secured in the federal courtroom during the 1940s and 1950s. Included in the list of victories were *Sipuel v. Board of Regents* (1948), *McLaurin v. Oklahoma State Regents for Higher Education* (1950), and most notably, *Sweatt v. Painter* (1950).³ In 1954, the legal strategy for educational desegregation shifted drastically following *Brown v. Board of Education*, which declared "separate-but-equal facilities inherently unequal."⁴ Such a victory was heralded by civil rights activists and celebrated among minority communities, as legal desegregation was dealt a fatal blow. A decade later, the Civil Rights Act of 1964 acted as the final nail in the coffin for segregation — at least from a legal perspective. What occurred was the end of what scholars label *de jure* segregation or segregation by law. Indeed, these legal developments stripped away formerly discriminatory legislation and, over time, tore down many forms of institutional racism. However, what is often forgotten in this telling of history is the persistent forms of *de facto* segregation that continued to linger for decades after the Civil Rights Act. Although segregation by law was deconstructed, segregation in practice, or *de facto* segregation, survived in many forms.

Recall the story of Gregory Swanson, who was admitted to UVA Law in 1950. Although he had decisively defeated segregation in the courtroom, *de facto* segregation at UVA remained strong and Swanson's story did not end happily ever after with the strike of a gavel. Unfortunately, racism and social isolation at UVA Law forced Swanson to abandon his pursuit of a graduate degree. His story is one that highlights the limitations of legal measures. The many developments in the courtroom ought to be celebrated, and the work of civil rights lawyers is in no way diminished; however, these victories are only one part of the process toward equal educational opportunity. This contrasts with the work of scholars like Carl Tobias, who cuts off the story of Swanson after his successful lawsuit,⁵ or Mark Tushnet, who argues that the elites and

of *Early African American Students At the University of Virginia*, Patricia Gandara, Gary Orfield, & Catherine Horn's *Expanding Opportunity in Higher Education*.

³ Carl W. Tobias, *Brown and the Desegregation of Virginia Law Schools*, 39 U. RICHMOND L. REV. 39, 39 (2004).

⁴ *Brown v. Board of Education of Topeka*, 347 U.S. 483 (1954).

⁵ Tobias, *supra* note 3.

lawyers are the ones who bring about desegregation,⁶ taking for granted the many societal barriers still in place after *Brown I*.

This essay does not argue for the irrelevance of legal progress, nor does it argue for the individual sufficiency of societal change; rather, it highlights the necessity of a dual approach to equal opportunity — one that relies on a bottom-up and a top-down approach. It is only with both legal and societal change present that advancements can be made. Section I will provide a relevant legal history leading up to the Swanson case. Section II will analyze the case study of Gregory Swanson, the limitations of the law in bringing about equal opportunity, and the many preexisting societal barriers in higher education. Section III will present the major progress made when both legal victories and societal change work in tandem, arguing for the efficacy of the dual approach to desegregation and equal opportunity.

I. A LEGAL HISTORY

Decades before Swanson applied to UVA Law, several black scholars fought in the courts for the right to learn, and it was through these cases that Swanson and his lawyers built a compelling argument that would result in his matriculation at UVA Law. The chain of events stretches back to the infamous *Plessy v. Ferguson*,⁷ but the scope of this section will focus on cases in the 1900s that created the precedent that the Swanson case relied on. There are five cases of particular importance: *University of Maryland v. Murray* (1935), *Missouri ex rel. Gaines v. Canada* (1938), *Sipuel v. Board of Regents* (1948), *Sweatt v. Painter* (1950), and *McLaurin v. Oklahoma State Regents* (1950).

In 1934, Donald G. Murray graduated from Amherst College and applied to the University of Maryland law school. Murray “met the standards for admission to the law school,”⁸ meaning he was qualified in terms of his skill set, academic achievement, and ability; however, he lacked the proper skin color according to the law school. As the appellate court found, Murray was “denied admission on the sole ground of his color.”⁹ This finding is shockingly similar to that of Swanson some 15 years later. The strategy of Murray’s legal team was not to challenge the constitutionality of the separate but equal clause established in *Plessy*, but rather to use that exact precedent to order Murray’s matriculation into the University of Maryland by proving that there was no “equal” facility in the state that Murray could have attended. Such a plan proved successful.

⁶ MARK V. TUSHNET, *THE NAACP’S LEGAL STRATEGY AGAINST SEGREGATED EDUCATION, 1925–1950* (1987).

⁷ *Plessy v. Ferguson*, 163 U.S. 537 (1896).

⁸ *University of Maryland v. Murray*, 169 Md. 478, 480 (1936).

⁹ *Id.*

The appeals court accepted Murray's argument and clarified that the constitutional requirement to "furnish equal treatment" supersedes any legislation prescribing the exclusive education of whites at an institution.¹⁰ In response, the university argued that covering his application fees and tuition for a law school outside of the state constituted equal treatment; however, the court disagreed, reasoning that providing "an opportunity to attend an outside law school, at an increased expense, falls short of providing [colored students] facilities substantially equal to [facilities for white students]."¹¹ Thus, the court concluded that given the unique circumstances in Maryland, "equal treatment can be furnished only in the one existing law school, [Donald G. Murray], in our opinion, must be admitted there."¹² Thus, it was established that if a state has no equal facility and a colored applicant is qualified, any legislation requiring an exclusively white facility is void, and the colored applicant must be admitted.

After the appellate court ruled in favor of Murray, the University of Maryland elected not to pursue further litigation; thus, the established rule was binding only within the state. This changed in 1938 when the Supreme Court decided the future of Lloyd Gaines, a black scholar who was seeking admission into the all-white State University of Missouri law school. Gaines graduated from Lincoln University in 1935 and possessed the qualifications for admission into the law school, but was ultimately rejected because the school found that admitting a black student violated the state's constitution.¹³ Similar to Murray's legal strategy, Gaines argued that within the framework of "separate but equal," the state failed to provide an equal facility and failed to provide proper remedies with its offer to build a facility in the state or pay for tuition at an out-of-state facility.

The Court cited *Murray*, finding that Missouri committed the same violation of the Fourteenth Amendment by failing to provide a separate and equal facility, and thus "instruction in law for negroes is not now afforded by the State, either at Lincoln University or elsewhere within the State."¹⁴ In this case, the university offered two remedies to Gaines. Either the state could build a separate but equal law school at Lincoln University or pay for an out-of-state law school. The Court found that "the policy of establishing a law school at Lincoln University has not yet ripened into an actual establishment, and it cannot be said that a mere declaration of purpose, still unfulfilled, is enough. The provision for legal education at Lincoln is at present entirely

¹⁰ *Id.* at 485.

¹¹ *Id.* at 486–487.

¹² *Id.* at 488.

¹³ *Missouri ex rel. Gaines v. Canada*, 305 U.S. 337, 342–343 (1938).

¹⁴ *Id.* at 344–345.

lacking.”¹⁵ As for covering tuition, the Court avoided comparing the quality of education outside of Missouri, reasoning that “The basic consideration is not as to what sort of opportunities other States provide, or whether they are as good as those in Missouri, but as to what opportunities Missouri itself furnishes to white students and denies to negroes solely upon the ground of color.”¹⁶ Thus, the remedy of providing out-of-state tuition “does not remove the discrimination,”¹⁷ and with such being established, the Court concluded that Gaines “was entitled to be admitted to the law school of the State University.”¹⁸

Now the precedent established in Maryland under *Murray* was expanded upon and made nationally binding with *Missouri ex rel. Gaines*. In 1948, the Court applied *Missouri ex rel. Gaines* and strengthened it by declaring that a state must provide colored students with access to education “as soon as it does for applicants of any other group.”¹⁹ No longer could a state stop a colored student from receiving an equal education by presenting the excuse of a delay. These three cases were enough to earn Swanson the right to attend UVA Law, but in the following two cases, the Court’s reasoning had substantial implications for the efficacy of “separate but equal” education. Although not necessary for the Swanson case’s success, they speak to the shifting judicial attitudes toward the postgraduate education of colored individuals. In 1950, the Supreme Court decided *Sweatt v. Painter* and *McLaurin v. Oklahoma State Regents*, which answered the question, “To what extent does the Equal Protection Clause of the Fourteenth Amendment limit the power of a state to distinguish between students of different races in professional and graduate education in a state university?”²⁰

Heman Marion Sweatt applied to the University of Texas law school in 1946 but was denied solely because he was black. When he sued the school, the Texas courts allowed the state to create a “separate but equal” law school in the next six months, and then deemed the new school “substantially equivalent,” thus upholding the segregated condition of the University of Texas law school.²¹ However, the Supreme Court had a different finding, unanimously agreeing that “we cannot find substantial equality in the educational opportunities offered white and Negro law students by the State.”²² It was not that “separate but equal” was inherently unequal, but rather, the specific circumstances presented were unequal.

¹⁵ *Id.* at 346.

¹⁶ *Id.* at 349.

¹⁷ *Id.* at 350.

¹⁸ *Id.* at 352.

¹⁹ *Sipuel v. Board of Regents*, 332 U.S. 631, 633 (1948).

²⁰ *Sweatt v. Painter*, 339 U.S. 629, 631 (1950).

²¹ *Id.* at 631–632.

²² *Id.* at 633.

The Court compared the University of Texas law school and the new law school for colored students, and after looking specifically at the faculty, course offerings, student body size, library contents, extracurricular opportunities, alumni networks, school traditions, and reputation, they determined that “the University of Texas Law School is superior.”²³ While holding firm on the “separate but equal” doctrine established in *Plessy v. Ferguson* and the precedent set in the aforementioned cases regarding graduate education, the Court concluded that the “petitioner may claim his full constitutional right: legal education equivalent to that offered by the State to students of other races. Such education is not available to him in a separate law school as offered by the State.”²⁴ Recall that in *ex rel. Gaines*, the Court intentionally avoided a comparison of an in-state school and out-of-state school, as such a comparison was unnecessary when the scope of comparison ought to be limited to the options within the state as prescribed by the Fourteenth Amendment.²⁵ What the Court did in *Sweatt* was compare two in-state schools and, given the substantial differences, order the desegregation of the superior, formerly exclusively white school.

Holding to precedent better than the Texas courts were the Oklahoma courts, which nullified state laws requiring segregation at certain institutions and ordered the University of Oklahoma to admit G.W. McLaurin, a black scholar pursuing a doctoral degree in education.²⁶ However, at the University of Oklahoma, McLaurin was required to sit at separate tables for classes and meals, which prompted him to sue again to remove such restrictions.²⁷ The school argued that McLaurin learned the same content from the same professor and had access to the same resources as white students, with the only difference being an assigned seat, which the state deemed had no disadvantage.²⁸ This argument was unanimously rejected by the Supreme Court, which found that “Such restrictions impair and inhibit his ability to study, to engage in discussions and exchange views with other students, and, in general, to learn his profession.”²⁹ Thus, the Court concluded “that the conditions under which this appellant is required to receive his education deprive him of his personal and present right to the equal protection of the laws . . . [McLaurin] must receive the same treatment at the hands of the state as students of other races.”³⁰

²³ *Id.* at 634.

²⁴ *Id.* at 635.

²⁵ *Gaines*, 305 U.S. at 349.

²⁶ *McLaurin v. Oklahoma State Regents*, 339 U.S. 637, 638–639 (1950).

²⁷ *Id.* at 640.

²⁸ *Id.*

²⁹ *Id.* at 641.

³⁰ *Id.* at 642.

Reflected in these five cases was the National Association for the Advancement of Colored People's legal strategy of working within the confines of the "separate but equal" doctrine established in *Plessy v. Ferguson*. Although the theory of "separate but equal" remained alive, it was severely weakened in the first half of the 20th century. *Murray* undermined popular state legislation that offered to send colored scholars to other states instead of desegregating in-state programs. This ruling was then made nationally binding in *ex rel. Gaines*, which was later strengthened in *Sipuel*, which required states to provide equal opportunity immediately. Finally, *Sweatt* and *McLaurin* limited the practical applications of "separate but equal" by ruling that a separate facility was substantially unequal and that discriminatory restrictions in an integrated school were unconstitutional.

II. GREGORY SWANSON AND THE LIMITATIONS OF THE LAW

Even the Supreme Court acknowledged the limitations of legal precedent and orders. In the *McLaurin* decision, Chief Justice Fred Vinson included his analysis of social dynamics and the consequences to such dynamics that would result from the Court's ruling. A major part of the decision was the severe damage caused by social segregation imposed by the state, which the Court deemed unconstitutional, as such "handicapped [McLaurin] in his pursuit of effective graduate instruction."³¹ Vinson then considered the argument that removing the state's restrictions on colored students would do nothing, as he may still be socially segregated by choice of the students. However, segregation by choice of individuals was beyond the scope of the Court, and as Vinson put it, "There is a vast difference—a Constitutional difference—between restrictions imposed by the state which prohibit the intellectual commingling of students, and the refusal of individuals to commingle where the state presents no such bar."³² Thus, once the legal obstacles were removed, courts could go no further in declaring social integration, and the degree of impact such limitations had is made no clearer than in the story of Gregory Swanson.

On January 19, 1950, Dean of UVA Law F.D.G. Ribble convened with the Committee on Graduate Studies to render a decision on Gregory Swanson's application. After deliberation, the Committee concluded that Swanson was "qualified for admission . . . [and] unanimously voted to admit the applicant." The Committee then deferred to the law school faculty to affirm the acceptance, which was approved with only one dissenting vote. Without any doubt, Swanson was a qualified and capable LL.M. candidate on the basis of his skill set, experience, and other components of his application. However, his abilities were not all that UVA evaluated. Despite the

³¹ *Id.* at 641.

³² *Id.*

approval of the law school dean, law school faculty, and the Committee on Graduate Studies, the Board of Visitors voided the acceptance. In an approved statement, the Board explained that “the applicant is a colored man . . . [and] white and colored shall not be taught in the same schools.”³³ There was no attempt at a cover-up. The reason for Swanson’s rejection was unmistakable — he was black.

Unfortunately for Swanson, the Board of Visitors had legal grounds for such a statement, with the Virginia state constitution forbidding “integrated government-supported education.” On its face, the state constitution seems to explicitly require the actions of the Board. However, the state’s Attorney General, J. Lindsey Almond Jr., contacted the Board before they rejected Swanson, informing them that the state’s constitutional provisions, prohibiting integrated education, did not apply to graduate schools.³⁴ Knowing that the state’s constitution did not apply, the Board still proceeded to reject Swanson on the basis of race. Agreeing with Almond’s interpretation and citing precedent set in *Sweatt v. Painter*, the court decided in favor of Swanson and ordered his acceptance to UVA Law. The court also held that rejecting an applicant purely on the basis of race violated the Fourteenth Amendment’s equal protection clause, preventing UVA Law from rejecting future candidates due to race.

Although Swanson’s legal victory marked an important moment in legal history, the decision was not the final chapter in his story at UVA Law. In his first year at UVA, Swanson “was not allowed to live or eat on [Grounds], nor was he allowed to attend social functions or sports events.”³⁵ In addition to such isolation, he also faced “death threats and racial shunning,”³⁶ which forced him to leave the program and transfer to Howard University, a historically black college that provided the proper support systems for Swanson to thrive. The hostile environment and perception of racism and isolation overshadowed the decisive legal victory just a year prior, putting on full display the limitations of using law to garner equal opportunity. Perhaps Swanson was legally granted equal opportunity, but by no means was his opportunity equal in practice.

At the time that Swanson matriculated into UVA Law, the social landscape on Grounds consisted of racism, harassment, and even violence. The wife of a UVA professor, Sarah Patton Boyle, was a civil rights activist who publicly supported Swanson’s fight, and as a result, “a Ku Klux Klan cross was burned on [her] lawn.”³⁷

³³ *Swanson v. Board of Visitors Agreed Statement of Facts* (1950).

³⁴ Tobias, *supra* note 3, at 46–47.

³⁵ Taj’ullah Sky Lark, *Unlocking Doors: How Gregory Swanson Challenged the University of Virginia’s Resistance to Desegregation. A Case Study*, 5 SPECTRUM J. BLACK MEN 71, 79 (2017).

³⁶ MAURICE APPREY & SHELLI M. POE, *THE KEY TO THE DOOR: EXPERIENCES OF EARLY AFRICAN AMERICAN STUDENTS AT THE UNIVERSITY OF VIRGINIA* 29 (2017).

³⁷ *Id.* at 31.

In another act of racism turned violent, UVA professor Paul Gaston was “severely beaten while participating in a 1963 desegregation sit-in at a Charlottesville restaurant.”³⁸ Racism was not always violent, but it was still put on full display in many spaces at UVA to discourage and demoralize minority students. A blatant example of this was the hanging of Confederate flags at fraternity houses and even at school dormitories.³⁹ Additionally, the Corner — a staple in the UVA community where students shop, eat, and socialize — was off-limits to students of color. As John Merchant, a black law student, recalls, “Owners would not allow a black to enter their stores or remain there if you did enter. Any effort made to sit in a restaurant and have a burger and fries exposed you to serious bodily harm.”⁴⁰ No wonder Swanson left after a year. Threats of violence, symbols of hate, and social isolation were conditions not conducive to a quality education. Despite the court order, equal opportunity remained glaringly absent at UVA.

Not only did the Swanson lawsuit fail to provide equal opportunity for Swanson, but the ruling that UVA Law could not reject future students on the basis of race also failed to yield much fruit. Despite the court’s explicit interpretation of the state constitution’s anti-integration provisions as not applicable to graduate programs, UVA Law continued to remain segregated for the most part.⁴¹ In fact, law schools in Virginia as a whole failed to include black students. At the two publicly supported legal institutions, UVA and William & Mary, “desegregation’s pace after 1950 was not expeditious . . . and was even slower in the private institutions.”⁴² Even with the *Brown* decision in 1954, desegregation was at best “characterized as gradual in the government-sponsored [law] schools.”⁴³ On a broader level, the impact of court decisions was also limited in other fields of graduate study in Virginia, with “neither *Brown I* nor *Brown II* [leading] to a change in policy or practice.”⁴⁴ Swanson’s legal victory seemed like a major turning point in graduate education in Virginia; however, its impact, and even the impact of the Supreme Court in *Brown*, was truly limited both in Swanson’s life and in the overall desegregation of the state’s graduate programs. Although the decisions were limited in bringing about equal opportunity and social barriers remained prevalent at UVA, Swanson’s victory and the *Brown* decision did serve a paramount purpose in clearing the legal hurdle for future generations and creating a foundation from which future students could build.

³⁸ *Id.*

³⁹ *Id.* at 63.

⁴⁰ *Id.* at 91.

⁴¹ Tobias, *supra* note 3, at 48.

⁴² *Id.* at 51.

⁴³ *Id.*

⁴⁴ PETER WALLENSTEIN, HIGHER EDUCATION AND THE CIVIL RIGHTS MOVEMENT: WHITE SUPREMACY, BLACK SOUTHERNERS, AND COLLEGE CAMPUSES 46 (2008).

The case study of Swanson's attempt to enter UVA Law and his subsequent social struggles was one not uncommon to minority students in American higher education as a whole. A study on public universities found that "even though African-American student access has increased . . . the campus community and academic environment of recently desegregated institutions constituted a vestigial barrier to African-American student retention and performance."⁴⁵ The first step was accomplished by the law, with *Brown I* and *Brown II* prohibiting public segregation, and the Civil Rights Act of 1964 using the power of federal funding to dismantle racial discrimination in public educational programs. However, the concerning poor performance of minority students exposed an incomplete process that required further efforts on the part of communities and individuals. With *de jure* segregation mostly brought to an end by the diligent efforts of civil rights activists and lawyers, *de facto* segregation in the form of hostile campus environments became the next target to bring about pedagogical progress.

To believe that legislation and court decisions alone can bring about equal opportunity is foolish and evidently insufficient. Such insufficiency was exposed in the individual story of Gregory Swanson, but also in the stories of institutions across America. In a Swanson-esque manner, black students were legally integrated into universities, but when faced with blatant racism, discrimination, and isolation, they were practically forced to leave. At the University of Massachusetts and Rutgers University, serious racial conflicts on the part of students and faculty resulted in an immediate decline in black enrollment — a perfect parallel to Swanson's story, just on a larger scale.⁴⁶ Gregory Swanson and many other minority students faced the societal and personal struggles of a hostile college campus, which negated the perceived progress of courtroom victories and legislative triumphs. The work of civil rights activists and lawyers was on full display in securing *de jure* victories, but their work was incomplete since the ultimate goal of equal opportunity remained unfulfilled. In the post-*Brown* era, *de facto* segregation was the primary obstacle to minority students seeking higher education. The top-down legal approach laid the foundation for minority students to enter predominantly white spaces of higher education, but was ultimately limited in its impact. With legal obstacles removed, activists' attention could shift to developing the societal infrastructure that, when coupled with legal victories, would produce adequate conditions for equal opportunity and compound the law's impact.

⁴⁵ JOHN B. WILLIAMS, RACE DISCRIMINATION IN PUBLIC HIGHER EDUCATION: INTERPRETING FEDERAL CIVIL RIGHTS ENFORCEMENT 1964–1996 120 (1997).

⁴⁶ LAURENCE R. MARCUS, FIGHTING WORDS: THE POLITICS OF HATEFUL SPEECH 92 (1996).

III. JOHN MERCHANT AND A DUAL APPROACH

Following in the footsteps of Gregory Swanson, John F. Merchant matriculated into UVA Law in 1955 as a J.D. candidate. In no small part, Swanson's lawsuit a few years prior played a major role in tearing down the *de jure* barriers to Merchant's acceptance to a historically segregated school. Indeed, the courtroom victories played a major, but incomplete, role in the fight for equal opportunity, as post-*Brown* college campuses across America remained highly racist, unaccepting, and isolating. On Merchant's first day, he encountered a Confederate flag in the window of a dorm, and he recalled that "an eerie feeling of being in a 'foreign country' appeared and would not go away."⁴⁷ The UVA that Merchant experienced was very similar to the UVA that isolated and forced Swanson to leave in 1951, but somehow Merchant survived and became the first black graduate of UVA Law, which begs the question: What changed?

For the most part, the legal structures for desegregation remained mostly constant between 1950 and 1955. Both Swanson and Merchant were protected by the federal court order prohibiting UVA Law from rejecting applicants purely on the basis of race.⁴⁸ The only development was the *Brown I* decision, but recall that well into the 1960s, "neither *Brown I* nor *Brown II* led to a change in policy or practice [at UVA],"⁴⁹ thus having virtually no impact on Merchant. This creates an opportunity to compare the case studies of Swanson and Merchant, with both receiving the legal means to attend UVA but experiencing drastically different outcomes. Although the legal progress of desegregation remained mostly stagnant, the distinct divergence between Swanson and Merchant was in their experience with the community and classmates.

Before exploring the societal change that produced an environment capable of cultivating success, it is important to note that by Merchant's graduation, UVA was not a place of progressive racial thought, nor was the fight to dismantle *de facto* segregation over. Rather, his story is one that highlights the necessity of a dual approach and the importance of societal factors in the fight for equal opportunity in higher education. Merchant entered into an environment filled with hostility, feeling like a foreigner as the only black student at UVA Law and as an outsider without any connections in Charlottesville.

In his first year, "a support system didn't exist . . . [and Merchant] was alone in his blackness," which almost led him to the same fate as Swanson, who years earlier left UVA due to racism and social isolation. Just as hope was running out, Merchant connected with three black families in Charlottesville, who "provided the respite

⁴⁷ APPREY AND POE, *supra* note 36, at 64.

⁴⁸ Tobias, *supra* note 3, at 47.

⁴⁹ WALLENSTEIN, *supra* note 44, at 46.

needed to maintain a sense of mission, direction, and courage.”⁵⁰ With families who were dedicated to creating a space of peace, friendship, and acceptance, he finally had a support system that Swanson lacked during his first year. Despite the isolation at UVA Law and the prevalent racism around Grounds, Merchant could endure it because he was not completely alone. He had a refuge to escape to, a home to refuel, friends to bear his burdens — he had a community. The presence of a community was the major difference between Swanson and Merchant, and as a result, Merchant could persevere through the many societal burdens of being a black student at UVA. Among these burdens were law school students who generally accepted him but also neglected his presence, especially during his first year. Fortunately, the culture of UVA Law was about to radically change for the good of Merchant and equal opportunity.

Merchant spent most of his first year alone and only found community outside of UVA Law, with Charlottesville families opening up their homes to black students; however, in his second and third years, students began to interact with him, and a major shift in campus culture was underway. This shift is best presented in Merchant’s interaction with the law school student council. During his first year, the student council shunned Merchant, excluding him from planned social events — a clear example of *de facto* segregation. This was hardly surprising to Merchant, and he quickly moved forward with his studies, but in his second year, the student council requested a meeting with him to apologize for excluding him, which Merchant saw as “an important step for diversity.”⁵¹ The following year, the student council met with Merchant again and asked for his help in organizing social events at locations that would allow law school students of all races to participate. In just three years, the culture of UVA Law shifted from *de facto* segregation and neglect to acceptance and active efforts to include Merchant in social events. The student leadership of UVA Law “was adamant about its willingness to help break down existing social barriers,” which led to Merchant’s evaluation of his time at UVA Law to be “positive.”⁵²

Additionally, Merchant’s inclusion in athletics played a major role in fostering a sense of belonging among his law school peers. As he explains it, “The issue [in athletics] is, ‘Can you play and help us win?’ not where did your parents come from.”⁵³ The realm of sports was a place to bond, compete, and, in a sense, prove one’s belonging. Merchant utilized this to build relationships, which, in no small part, strengthened him while being the only black student at UVA Law. Further, Merchant took advantage of UVA Law’s strong softball culture by participating and winning the

⁵⁰ APPREY AND POE, *supra* note 36, at 65.

⁵¹ *Id.* at 86.

⁵² *Id.* at 88.

⁵³ *Id.* at 89.

university softball championship in 1957. On one occasion, Merchant and his team of law school students were forced to play on a different field due to the color of his skin, which the *Virginia Law Weekly* criticized in a front-page story. Merchant recounts this experience and the support of law school peers to publicly criticize discrimination as “important memories . . . [of] very positive action by people who cared.”⁵⁴ Through athletics, Merchant found another way of belonging, and it produced individual agents who supported his presence.

From isolated and hopeless to cared for and optimistic, Merchant’s experience at UVA Law is one of drastic societal change, which produced a drastically different outcome. While Gregory Swanson suffered through a year of harassment, racism, and threats without any support, Merchant bore those burdens with the help of Charlottesville’s black community and his fellow classmates. Two black students with the same legal support but radically different social experiences and outcomes, such is the powerful effect of a dual approach to equal opportunity. The law without social support results in the fate of Gregory Swanson. When legal precedent and positive social infrastructure work in tandem, the natural product is radical change and progress. Comparing the stories of Swanson and Merchant highlights the limitations of the law and emphasizes the pedagogical progress resulting from a combination of a top-down and bottom-up approach.

CONCLUSION

The law is important and a major pillar of the civil rights movement, but its significance is often overemphasized at the cost of neglecting societal progress, or the lack thereof. Understanding the distinction between *de jure* and *de facto* segregation is essential in interpreting the factors that actually achieve equal opportunity in higher education. Equal opportunity is not a political theory; it is something that is accomplished in reality. I do not mean to diminish the work of civil rights lawyers and activists in dismantling discriminatory precedent and legislation, but the *de jure* victory is just one part of a dual approach. In isolation, the law is limited, and its effects are hindered by the prevalence of *de facto* segregation, as is evident in the story of Gregory Swanson’s time at UVA Law. However, when the law is coupled with societal change that allows for proper support systems to develop, the educational impacts of the law are multiplied, as is evident in the story of John Merchant. The desegregation of UVA Law provides a model for interpreting the effectiveness of law, and in doing so, the dual approach is shown to be the most effective in producing equal opportunity. One is not more important than the other; the law is not more effective than the people,

⁵⁴ *Id.* at 17.

nor are the people more effective than the law — balance is the key. It takes both legal progress and societal change for equal opportunity to be realized.